CYBERNETIC SAFE PURCHASE AGREEMENT
v1.0

This Cybernetic SAFE Purchase Agreement (cyberSAFE) (this "***Agreement***") is being entered into as of the completion of the Adoption Procedures by an entity selling and issuing a Simple Agreement for Future Equity (as a security such entity and entitling the purchase to future equity in such entity) in the form attached hereto as Exhibit D (the "***SAFE***") pursuant to this Agreement (the "***Company***") and an individual or entity purchasing a SAFE pursuant to this Agreement (the "***Investor***" and together with the Company, the "***Parties***" and each a "***Party***") with the intention of completing a potential SAFE Purchase wherein the Investor will purchase a SAFE from the Company for a Purchase Amount paid for by the Investor in Blockchain Tokens, with the SAFE being represented by a SAFE Certificate Token to be issued to the Investor on the Designated Blockchain System.

The Parties wish to enter into this Agreement via specific Blockchain Systems and to commit their respective Blockchain Tokens to the control of a particular Smart Contract that will serve as a non-custodial escrow enabling automated entry into this Agreement and consummation of the SAFE Purchase.

Certain capitalized terms used in this Agreement are defined in Section 5.

The Agreement Template for this Agreement, and certain of the Deal Management Technologies assisting with the execution and delivery of this Agreement and the consummation of the SAFE Purchase, were authored and deployed by MetaLeX. By entering into or using this Agreement or any of the Deal Management Technologies, you also acknowledge and agree to the MetaLeX Terms, License and Disclaimers set forth on Exhibit C. Additionally if you are using the MetaLeX Web Application in connection with the foregoing, you agree to the MetaLeX Web App Terms of Service.

1. **SAFE Purchase**.

1.1 SAFE Purchase Terms. The Company hereby sells and issues the SAFE (represented as a SAFE Certificate Token on the Designated Blockchain System) to the Investor, and the Investor hereby purchases the SAFE by paying the Purchase Amount (represented as certain Blockchain Tokens on the Designated Blockchain System (the "***Purchase Amount Tokens***")) to the Company (such sale, issuance, and purchase, the "***SAFE Purchase***").

1.2 Adoption Procedures. The Parties shall mutually execute and deliver this Agreement and consummate the SAFE Purchase by following the Adoption Procedures set forth in Section 5.1. Completion of the Adoption Procedures by the Parties will cause the details of this Agreement and the SAFE Purchase to be recorded on the Designated Blockchain System and will deploy certain Smart Contracts on the Designated Blockchain System to assist with the performance of the Parties' respective obligations under this Agreement, including the Deal Manager Smart Contract that will escrow the Parties' respective Blockchain Tokens (i.e., the Purchase Amount Tokens and the SAFE Certificate Token) and effectuate the SAFE Purchase.

2. **Representations/Warranties**.

Each Party hereby represents and warrants, to and for the benefit of the other Party as follows in this Section 2:

2.1 SAFE Representations/Warranties. Each Party hereby makes the representations and warranties set forth in the SAFE that are applicable to such Party (based on whether such Party is the Investor or the Company), as if set forth herein.

2.2 Authorization.

(a) If such Party is an entity, all actions necessary to be taken by such Party's directors, managers, officers, members, stockholders, and other persons with a direct or indirect authority over or economic, beneficial or voting interest in such Party in order to authorize such Party to enter into, and perform such Party's obligations under, this Agreement have been taken and such Party has full power and authority to enter into this Agreement.

(b) If such Party is a natural person, such Party is fully authorized to enter into this Agreement on such Party's own behalf, has the legal capacity to do so, is of the legal age of majority in the jurisdiction of their primary residence, and is of sound mind.

2.3 Enforceability. This Agreement, when executed and delivered by such Party and the other Party(ies) hereto, shall constitute a valid and legally binding obligation of such Party, enforceable against such Party in accordance with its terms, except as limited by: (a) applicable bankruptcy, insolvency, reorganization, moratorium, fraudulent conveyance, or other laws of general application relating to or affecting the enforcement of creditors' rights generally or (b) laws relating to the availability of specific performance, injunctive relief, or other equitable remedies.

2.4 Compliance with Other Agreements Etc. The execution, delivery and performance of this Agreement and the consummation of the transactions contemplated by this Agreement by such Party will not result in a breach or violation of or default under, or otherwise be in conflict with, any instrument, judgment, order, writ, decree, contract or agreement to which such Party is a Party or by which such Party or any of the Blockchain Tokens to be delivered by such Party pursuant to this Agreement are bound.

2.5 Local Law Compliance. Such Party hereby represents that such Party's execution, delivery and performance of this Agreement complies in all material respects with all laws applicable to such Party.

2.6 Private Key Ownership. Based on the knowledge of such Party, such Party is the sole and exclusive holder, knower and owner of the private key(s) controlling all blockchain addresses of such Party referred to in or necessary for the performance of this Agreement and of the "seed(s)" used to generate the pairing of such private key(s) with such address(es).

2.7 AML Compliance. Based on the knowledge of such Party, none of the Blockchain Tokens to be utilized by such Party in connection with this Agreement are derived from or related to any unlawful activities, including money laundering, terrorist financing or proliferation financing. Based on the knowledge of such Party, neither such Party nor any person for whom such Party is acting as agent or nominee in connection with the SAFE Purchase is the subject of (or is subject to) sanctions administered or enforced by any applicable intergovernmental organization or governmental authority, or is organized or residing in a country or territory that is the subject of country-wide or territory-wide sanctions administered or enforced by any applicable intergovernmental organization or governmental authority.

2.8 Purchase Amount Tokens. The Investor represents and warrants to the Company that the Purchase Amount Tokens are solely owned by and constitute the property of the Investor, free and clear of all liens, claims, encumbrances, and transfer restrictions.

2.9 No Other Representations. In entering into and performing its obligations under this Agreement, such Party is not relying on any statement, representation or warranty, or omission of any statement, representation or warranty (whether express or implied, or arising by operation of any law, principle of equity or statute, or otherwise), other than the representations and warranties of the other Party expressly set forth in this Section 2. Except to the extent solely based on a breach of the representations and warranties of the other Party expressly set forth in this Section 2 made within the applicable statute of limitations, the other Party will have no liability or other obligation to such Party resulting from any statement, information, representation or warranty, or omission of any statement, information, representation or warranty (whether express or implied, or arising by operation of any law, principle of equity or statute, or otherwise) given to or made to such Party in connection with or relating directly or indirectly to the subject matter of this Agreement.

3. Agreements Regarding Use of the Deal Management Technologies

3.1 Agreement to Use and Presumption of Correctness of Deal Management Technologies. By entering into this Agreement, the Parties are agreeing to automate certain aspects of the execution, delivery, and performance of this Agreement and the SAFE by means of the Blockchain Systems, Blockchain Tokens, and Smart Contracts referred to in this Agreement (the "***Deal Management Technologies***"). To best secure the benefits of the Deal Management Technologies (including increased efficiency, reduced counterparty performance risk, transparency, reduction of transaction costs, and finality), the Parties hereby agree that in any Dispute, the results of operation of the Deal Management Technologies shall be presumed to be consistent with this Agreement and the SAFE, to reflect the understanding and intentions of the Parties, and to be final, binding and determinative on the Parties, except to the extent materially adversely affected by any of the following events occurring or being reasonably expected to occur (each, a **"*Material Adverse Exception Event*"**):

(a) a Consensus Attack adversely affecting the results or operations of such Designated Smart Contract;

(b) a change to the consensus rules of the Designated Blockchain System or Ethereum that could reasonably be expected to adversely affect the results or operations of such Designated Smart Contract or could reasonably be expected to result in a "contentious hard fork" (as such term is commonly understood and used by software engineers expert in developing blockchain protocol software clients) of the Designated Blockchain System or Ethereum;

(c) a "reorganization" (as such term is commonly understood and used by software engineers expert in developing blockchain protocol software clients) of the Designated Blockchain System or Ethereum that could reasonably be expected to adversely affect the results or operations of such Designated Smart Contract;

(d) such Designated Smart Contract having become inoperable, inaccessible or unusable, or any Blockchain Tokens under the control of such Designated Smart Contract having become permanently "frozen," "stuck" or non-transferable (where such a condition shall be deemed "permanent" if such condition would persist except in the event of a change to the consensus rules of the Designated Blockchain System or Ethereum that is not reasonably expected to occur in the near future), including as the result of any code library or repository incorporated by reference into such Designated Smart Contract or any other smart contract or oracle on which such Designated Smart Contract depends in whole or in part having become inoperable, inaccessible or unusable or having itself suffered a Material Adverse Exception Event, *mutatis mutandis*;

(e) a material and adverse effect on the use, functionality or performance of such Designated Smart Contract as the result of a clear and manifest bug, defect or error in such Designated Smart Contract, as evidenced by the failure of such Designated Smart Contract to function in accordance with provisions of this Agreement expressly pertaining to such Designated Smart Contract or by documentation or other evidence prepared contemporaneously with the Designated Smart Contract source code demonstrating that the intended functioning of such Designated Smart Contract differs materially from the actual functioning as a result of such bug, defect or error;

(f) a person other than an intended counterparty participating in the Adoption Procedures or obtaining the Purchase Amount Tokens or the SAFE Certificate Token in a manner that enables them to participate in the transactions contemplated by this Agreement, including by *misappropriating* the secret referred to in Section 5.2(a)(iii), impersonating an intended counterparty or otherwise providing false information during the Adoption Procedures, or depositing Blockchain Tokens into the Deal Manager Smart Contract ahead of an intended counterparty;

(g) such Designated Smart Contract or any of the Blockchain Tokens controlled by such Designated Smart Contract becomes subject to an Order or applicable Legal Requirement that permanently or temporarily prohibits or restrains such Designated Smart Contract (or that, if such Designated Smart Contract were a person, would prohibit or restrain such *Designated* Smart Contract) from executing any function or operation it would otherwise reasonably be expected to execute or permanently or temporarily orders or directs such Designated Smart Contract (or that, if such Designated Smart Contract were a person, would order or direct such Designated Smart Contract) to take an action or bring about a circumstance it would otherwise not reasonably be expected to take or bring about; or

(h) either Party becomes subject to an Order or applicable Legal Requirement requiring such Party to cause such Designated Smart Contract to take or refrain from taking any action or requiring such Party to take or refrain from taking any action with respect to any of the Blockchain Tokens of such Party that are subject to this Agreement, in each case, which it is not within the power of such Party to comply with in light of the nature of the Designated Smart *Contracts*; *provided, however,* that to trigger this clause '(g)' pursuant to an applicable Legal Requirement, a Party must obtain, and share with the other Party, from a reputable law firm of 15 lawyers or more in the jurisdiction of the relevant Legal Requirement a written legal opinion to the effect that both: (i) such Legal Requirement applies; and (ii) such Legal Requirement requires the specified action or inaction.

3.2 Handling of Material Adverse Exception Events.

(a) *Exception Notice.* If either Party becomes aware that there is a Material Adverse Exception Event, such Party (the "***Sending Party***") shall deliver or cause to be delivered to the other Party (the "***Receiving Party***") a written notice (an "***Exception Notice***"):

(i) certifying that the Sending Party believes in good faith that there is or has been a Material Adverse Exception Event;

(ii) describing in reasonable detail the events, facts, circumstances and reasons forming the basis of such belief;

(iii) if so desired by the Sending Party, describing in reasonable detail a proposal by the Sending Party of the actions to be taken, the agreements to be entered into, and the remedies to be sought by the Parties in response to the Material Adverse Exception Event an "***Exception Handling Proposal***"; and

(iv) including copies of any written evidence or other material written information, and summaries of any other evidence, relevant to, and material for the consideration of, the Material Adverse Exception Event and the other matters referred to in the Exception Notice.

(b) *Exception Standstill.* During the period starting on the date of delivery of an Exception Notice and ending at the time an Exception Handling Determination is made (the "***Standstill Period***"), the Parties shall: (i) safeguard, set aside and hold in trust for the Parties any Blockchain Tokens that may have been received as a result of the Material Adverse Exception Event as described in the Exception Notice; and (ii) refrain from using the Deal Management Technologies in a manner that would reasonably be expected to be affected by, or would further the effects of or fail to mitigate the damages caused by, the Material Adverse Exception Event as described in the Exception Notice.

(c) *Determination of Exception Handling*. The term "***Exception Handling Determination***" means a determination by either: (i) mutual written consent signed by the Parties; or (ii) the final resolution of a Dispute in accordance with Section 4.2, as to: (A) the existence or non-existence of a Material Adverse Exception Event and (B) if a Material Adverse Exception Event has been determined to exist, the actions to be taken, the agreements to be entered into, and the remedies to be sought in response thereto. Each of the Parties shall act in accordance with the Exception Handling Determination. If any amendment to this Agreement is required by the Exception Handling Determination, the Parties shall promptly engage legal counsel to draft such amendment for execution by the Parties.

3.3 Key Management. Each Party is responsible for maintaining access to and securing against access by third parties any 'wallet' or private keys to be used by such Party in connection with this Agreement and the transactions contemplated thereby, including the use of such private keys to sign this Agreement and to execute transactions on the applicable Deal Management Technologies as may be required under this Agreement. Each Party assumes all risk of loss of access to or theft, misappropriation, unauthorized access or other exploitation of the foregoing by third parties. Each Party hereby acknowledges and accepts that if the foregoing occurs, the SAFE Purchase may nevertheless be executed and such Party may nevertheless receive Blockchain Tokens at the address controlled by such private keys and be unable to transact in such Blockchain Tokens or may have such Blockchain Tokens misappropriated, or may otherwise suffer damages in connection with this Agreement and the transactions contemplated hereby, and each Party hereby assumes all such risks and waives and releases all rights and remedies against the other Party, and MetaLeX, that may otherwise exist in connection with such losses.

4. Miscellaneous

4.1 Governing Law**.** This Agreement shall be governed by and construed under the internal laws of the Governing Jurisdiction, regardless of the laws that might otherwise govern under applicable principles of conflicts of laws.

4.2 Dispute Resolution. All Disputes shall be resolved in accordance with the Dispute Resolution

Method.

4.3 Notices. All notices and other communications given or made pursuant to this Agreement shall be in writing and shall be deemed effectively given upon the earlier of: (i) personal delivery to the Party to be notified; or (ii) on the third business day after being sent, if sent in accordance with the contactDetails (set during the Adoption Procedures) of the Party to be notified.

4.4 Amendment; Waiver. This Agreement may be amended and provisions may be waived (either generally or in a particular instance and either retroactively or prospectively), only with the written consent of both of the Parties, and as stated in Section 3.2(c) herein. No waiver of any provision hereunder shall be deemed a waiver of any subsequent breach or default of the same or any other provision of this Agreement, unless so stated in writing by the waiving Party.

4.5 Severability. Any term or provision of this Agreement that is found invalid or unenforceable in any situation in any jurisdiction shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction. If a final judgment of a court of competent jurisdiction declares that any term or provision hereof is invalid or unenforceable, the parties hereto agree that the court making such determination shall have the power to limit such term or provision, to delete specific words or phrases, or to replace any invalid or unenforceable term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and this Agreement shall be enforceable as so modified. In the event such court does not exercise the power granted to it in the prior sentence, the parties hereto agree to replace such invalid or unenforceable term or provision with a valid and enforceable term or provision that will achieve, to the extent possible, the economic, business and other purposes of such invalid or unenforceable term or provision.

4.6 Entire Agreement. This Agreement constitutes the entire agreement and understanding of the parties with respect to the subject matter hereof and supersede any and all prior negotiations, correspondence, warrants, agreements, understandings, duties or obligations between or involving the parties with respect to the subject matter hereof.

4.7 Further Assurances. At any time or from time to time after the SAFE Purchase, the parties shall cooperate with one another, and, at the other's request, each party shall execute and deliver any further instruments or documents and to take all such further actions as such other Party may reasonably request in order to carry out the intent of this Agreement.

4.8 Delays or Omissions. No delay or omission to exercise any right, power, or remedy accruing to any party under this Agreement, upon any breach or default of any other party under this Agreement, shall impair any such right, power, or remedy of such non-breaching or non-defaulting party, nor shall it be construed to be a waiver of or acquiescence to any such breach or default, or to any similar breach or default thereafter occurring, nor shall any waiver of any single breach or default be deemed a waiver of any other breach or default theretofore or thereafter occurring. Any waiver, permit, consent or approval of any kind or character on the part of any party of any breach or default under this Agreement, or any waiver on the part of any party of any provisions or conditions of this Agreement, must be in writing and shall be effective only to the extent specifically set forth in such writing. All remedies, whether under this Agreement or by law or otherwise afforded to any party, shall be cumulative and not alternative.

4.9 Signature; Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail or other transmission method, including Blockchain Systems records of private key signatures, and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes, including that the parties shall be entitled to rely on any such electronic signature for the purposes of any electronic signature laws of the Governing Jurisdiction.

4.10 Successors and Assigns. The terms and conditions of this Agreement shall inure to the benefit of and be binding upon the respective successors and assigns of the parties hereto and express beneficiaries hereof.

4.11 Rules of Construction.

(a) *Gender; Etc.* For purposes of this Agreement, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.

(b) *Ambiguities.* The Parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting Party shall not be applied in the construction or interpretation of this Agreement.

(c) *No Limitation*. As used in this Agreement, the words "include," "including," "such as" and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words "without limitation." The word "or" shall mean the 'non-exclusive' "or" (e.g., if *x* and *y* are propositions, then "*x or y is true*" will be true where x is true but y is false, y is true but x is false, and both x and y are true).

(d) *References*. Except as otherwise indicated, all references in this Agreement to "Sections," "Schedules" and "Exhibits" are intended to refer to Sections of this Agreement and Schedules and Exhibits to this Agreement.

(e) *Hereof.* The terms "hereof," "herein," "hereunder," "hereby" and "herewith" and words of similar import will, unless otherwise stated, be construed to refer to this Agreement as a whole and not to any particular provision of this Agreement.

(f) *Captions/Headings*. The captions, headings and similar labels contained in this Agreement are for convenience of reference only, shall not be deemed to be a part of this Agreement and shall not be referred to in connection with the construction or interpretation of this Agreement.

(g) *person*. The term "person" refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, partnership or joint venture.

(h) *Blockchain Finalization*. Wherever this Agreement calls for a certain action to be completed on the Designated Blockchain System, such action must be "Finalized" to have the intended legal effect hereunder. ***"Finalization***" or "***Finalized***" means, with respect to a transaction, operation or state on a Designated Blockchain System, that: (a) such transaction, operation or state (or the results or record thereof, which may include state roots or calldata committed to Ethereum by a layer-2/L2 Blockchain System) has been recorded in a block of the Ethereum Blockchain; and (b) such block has been fully finalized in accordance with the checkpoint finalization algorithm of the Ethereum consensus protocol; *provided, however,* that for Designated Blockchains that are L2s using ‘optimistic verification’, where the SAFE Purchase does not exclusively involve Blockchain Tokens that are native to such Designated Blockchain, such finalization of the SAFE Purchase shall also require expiration of the relevant ‘challenge period’ for withdrawals from the Designated Blockchain to Ethereum.

(i) *Smart Contract Deposits*. References to depositing assets into or with or inside a Smart Contract or assets being held by a Smart Contract refer to the Parties directly or indirectly effecting transactions on a Blockchain System such that the Smart Contract in question has certain controls over the relevant asset (e.g. that transfers of such assets can then be effected by calling certain functions on such Smart Contract).

5. Defined Terms

5.1 “***Adoption Procedures***” means that this Agreement has been entered into by or on behalf of the Parties, as follows:

(a) the Company, by calling or causing to be called the `proposeAndSignDeal()` or `proposeDeal()` function of the Deal Manager Smart Contract with reference to the Agreement Template, has created or caused to be created a data structure representing and setting forth the details of this Agreement (the “***Registered Deal Data***”) in the Agreement Registry Smart Contract, and the Agreement Registry Smart Contract has stored a unique agreementId associated with that data structure (such uniquely identifiable data structure, the “***Registered Deal***”);

(b) the Company has electronically signed this Agreement with the Company’s private key by calling or causing to be called the `signContractorFor()` function of the Deal Manager Smart Contract with reference to the Agreement Template, Registered Deal, and Registered Deal Data;

(c) the Investor, by calling or causing to be called the `signAndFinalizeDeal()` function of the Deal Manager Smart Contract and has added or cause to be added to the Registered Deal Data any necessary details regarding the Investor that are required by the Agreement Template that were not previously supplied by the Company; and

(d) the Investor has electronically signed this Agreement with the Investor’s private key by calling or causing to be called the `signContractorFor()` function of the Deal Manager Smart Contract with reference to the Agreement Template, Registered Deal, and Registered Deal Data.

5.2 The “***Registered Deal Data***” means the specific data used to parameterize the Agreement Template and must include at least the following information:

(a) as the `globalValues` variable of the Registered Deal, a data structure setting forth the following data, which shall correspond to the data fields specified in the `globalFields` variable of the Agreement Template:

(i) the amount of U.S. dollar equivalents (e.g., units of USDC or another stablecoin) being paid to purchase the SAFE (i.e., the ‘Purchase Amount’ as defined in the SAFE);

(ii) the amount of U.S. dollars intended to serve as the valuation of the Company for determining conversion of the SAFE (i.e., the ‘Post-Money Valuation Cap’ as defined in the SAFE);

(iii) optionally, a secret `bytes32` variable set by the Company in order to restrict who may sign this Agreement as an Investor;

(iv) the name of the jurisdiction whose law will govern this Agreement (the “***Governing Jurisdiction***”), as the `governingLaw` string variable;

(v) the string “`bindingArbitration`,” the string “`courtResolution`” or another string specifying an alternative dispute resolution, as the `disputeResolutionMethod` string variable;

(b) as the `partyValues` variables of the Registered Deal, data structures setting forth the following data about the Parties, which shall correspond to the applicable data fields specified in the `partyFields` variable of the Agreement Template:

(i) a blockchain address of the Company (the “***Company Blockchain Address***”), the legal name of the Company, details of where the Company can be contacted for purposes of giving notices under this Agreement ,the entity type of the Company, the jurisdiction of incorporation of the Company, and

(ii) a blockchain address of the Investor (the “***Investor Blockchain Address***”), the legal name of the Investor, details of where the Investor can be contacted for purposes of giving notices under this Agreement, and, if the Investor is an entity, the entity type of the Investor and the jurisdiction of incorporation of the Investor; and

(c) the SAFE Certificate Token and the Purchase Amount Tokens have both been deposited into the Deal Manager Smart Contract.

5.3 “***Agreement Registry Smart Contract***” means the official MetaLeX deployment of `CyberAgreementRegistry.sol` on the Designated Blockchain System, being the Smart Contract at address `0x9d4EFe86964eb038848D7aD4d208AAdEA7282516` on the Designated Blockchain System.

5.4 “***Agreement Template***” means a data structure stored in the Agreement Registry Smart Contract setting forth (as its `legalContractUri` string variable) an IPFS URI of this Agreement (the “***Legal Template***”), a template ID for unique identification of the Legal Template, and (as its `globalFields` variable and `partyFields` variables) a specification of the types of data (such as party names) needed to fill in the details of the Legal Template in order to create a legal agreement between particular parties.

5.5 “***Blockchain***” means a distributed data structure consisting of hashlinked sets (‘blocks’) of transactions that is directly or indirectly produced, maintained and/or secured by the automated consensus of a network of independent nodes operating a byzantine-fault-tolerant protocol.

5.6 “***Blockchain System***” means the combination of:

(a) a Blockchain; and

(b) a network of one or more devices operating software clients or software applications that jointly or individually store, validate, process transactions with respect to, update, resolve forks with respect to or otherwise maintain, validate, read *from*, store data with respect to, create public proofs with respect to, or write to such Blockchain.

5.7 "***Blockchain Tokens***" means any virtual currency, token, or other unit of account or medium of exchange that is implemented exclusively or primarily on a Blockchain System, regardless of whether transferable, non-transferable, fungible or non-fungible.

5.8 "***Consensus Attack***" means an attack that: (A) is undertaken by or on behalf of a person or group that controls a preponderance of the means of block production on the Designated Blockchain System or Ethereum; and (B) has the actual or intended effect of: (1) reversing any transaction made to or by any Designated Smart Contract, including any "double spend" attack having or intended to have such effect; or (2) preventing inclusion in blocks or Confirmation of any transaction made to or by any Designated Smart Contract, including any "censorship attack," "transaction withholding attack" or "block withholding attack" having or intended to have such effect.

5.9 "***Deal Manager Smart Contract***" means the instance of `DealManager.sol` deployed by or on behalf of the Company.

5.10 "***Designated Blockchain System***" means the Blockchain System selected by the Parties for executing and performing this Agreement and the SAFE Purchase. Such Blockchain System shall include the relevant Deal Manager Smart Contract selected by the Parties for this Agreement and the SAFE Purchase, and may be Ethereum or an Ethereum "layer-2"/"L2" such as Arbitrum, Base, Optimism, or ZKsync.

5.11 "***Designated Smart Contracts***" means the Deal Manager Smart Contract, Agreement Registry Smart Contract and any other Smart Contracts constituting an instance of all or any portion of the MetaLeX Protocol that are used in connection with the execution, delivery, or performance of this Agreement or the transactions contemplated by this Agreement.

5.12 "***Dispute Resolution Method***" means:

(a) if the value of the `disputeResolutionMethod` variable referred to in Section 5.2(a)(v) is "`bindingArbitration`", the dispute resolution procedures set forth on Exhibit A;

(b) if the value of the `disputeResolutionMethod` variable referred to in Section 5.2(a)(v) is "`courtResolution`", the dispute resolution procedures set forth on Exhibit B; and

(c) if the value of the `disputeResolutionMethod` variable referred to in Section 5.2(a)(v) sets forth or refers to another dispute resolution procedure, such other dispute resolution procedure.

5.13 "***Ethereum***" means, at any time, the canonical Blockchain System of the Ethereum Mainnet 'mainnet', as recognized by at least a majority of the validators running correct versions of the go-Ethereum client ('geth') then being operated in good faith in the ordinary course of the network.

5.14 "***Legal Proceeding***" means any private or governmental action, suit, litigation, arbitration, claim, proceeding (including any civil, criminal, administrative, investigative or appellate proceeding), hearing, inquiry, audit, examination or investigation commenced, brought, conducted or heard by or before, or otherwise involving, any court or other governmental entity or any arbitrator or arbitration panel.

5.15 "***Legal Requirement***" means any federal, state, local, municipal, foreign or other law, statute, legislation, constitution, principle of common law, resolution, ordinance, code, edict, decree, proclamation, treaty, convention, rule, regulation, ruling, directive, pronouncement, requirement, specification, determination, decision, opinion or interpretation issued, enacted, adopted, passed, approved, promulgated, made, implemented or otherwise put into effect by or under the authority of any governmental body.

5.16 "***MetaLeX***" means MetaLeX Labs, Inc., a Delaware corporation.

5.17 "***MetaLeX Protocol***" means the Smart Contract and Blockchain Systems source code at https://github.com/MetaLex-Tech and its repositories.

5.18 "***MetaLeX Web App***" means https://www.metalex.tech/, https://www.app.metalex.tech/ and all subpages.

5.19 "***MetaLeX Web App Terms of Service***" means the most current version of the terms of service of the MetaLeX Web App, typically published at https://github.com/MetaLex-Tech/publicDocs/tree/main/MetaLeX%20Legal%20Docs as well as on the MetaLeX Web App.

5.20 "***Order***" means any restraining order, preliminary or permanent injunction, stay or other order, writ, injunction, judgment or decree that either: (a) is issued by a court of competent jurisdiction, or (b) arises by operation of applicable law as if issued by a court of competent jurisdiction, including, in the case of clause '(b)' an automatic stay imposed by applicable law upon the filing of a petition for bankruptcy.

5.21 "***Parties***" means the Company and the Investor.

5.22 "***SAFE Purchase***" has the meaning set forth in Section 1.1.

5.23 "***Smart Contract***" means any executable bytecode (commonly known as 'smart contracts') deployed to a Blockchain System for operation by node operators running validators, sequencers or similar network operators on such Blockchain System.

EXHIBIT A

BINDING CONFIDENTIAL ARBITRATION

(a) Subject to clause '(c)' of this Exhibit A, the Parties hereby (i) irrevocably and unconditionally submit to the jurisdiction of the relevant courts of the Governing Jurisdiction for the purpose of any dispute, suit, action or other proceeding arising out of or based upon this Agreement or the matters contemplated by this Agreement ("***Disputes***"), (ii) agree not to commence any suit, action or other proceeding arising in connection with or based upon this Agreement or the matters contemplated by this Agreement except before the above-referenced courts, and (iii) waive, and agree not to assert, by way of motion, as a defense, or otherwise, in any such suit, action or proceeding, any claim that it is not subject personally to the jurisdiction of the above-referenced courts, that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that this Agreement or the subject matter hereof or thereof may not be enforced in or by such court.

(b) Each Party will bear its own costs in respect of any Disputes.

(c) Unless otherwise agreed in a written agreement signed by both Parties, all Disputes shall be resolved by confidential, binding arbitration to be seated in the Governing Jurisdiction and conducted in the English language by a panel of three arbitrators pursuant to the rules of the International Chamber of Commerce (the "***Rules***"). The arbitrators shall be appointed in accordance with the procedures set out in the Rules. The award or decision of a majority of the arbitrators shall be final and binding upon the Parties and the Parties expressly waive any right under the laws of any jurisdiction to appeal or otherwise challenge the award, ruling or decision of such majority. The judgment of any award or decision may be entered in any court having competent jurisdiction to the extent deemed reasonably necessary by the Party prevailing in the Arbitration, and the prevailing Party shall have all rights of a judgment creditor as to such Arbitration award in such jurisdiction. Except as provided in the preceding sentence, no Party shall (or shall permit its representatives to) commence, continue or pursue any Dispute in any court; provided, however, that each Party shall be entitled to seek (in accordance with clause '(a)' of this Exhibit A) a preliminary injunction, temporary restraining order or similar provisional relief to prevent threatened or ongoing breaches of this Agreement or to provisionally enforce specifically the terms and provisions of this Agreement, this being in addition to any other remedy to which each Party is entitled at law or in equity.

(d) EACH PARTY HEREBY WAIVES ITS RIGHTS TO A JURY TRIAL OF ANY CLAIM OR CAUSE OF ACTION BASED UPON OR ARISING OUT OF THIS AGREEMENT OR THE SUBJECT MATTER HEREOF. THE SCOPE OF THIS WAIVER IS INTENDED TO BE ALL-ENCOMPASSING OF ANY AND ALL DISPUTES THAT MAY BE FILED IN ANY COURT AND THAT RELATE TO THE SUBJECT MATTER OF ANY OF THE TRANSACTIONS CONTEMPLATED BY THIS AGREEMENT, INCLUDING, WITHOUT LIMITATION, CONTRACT CLAIMS, TORT CLAIMS (INCLUDING NEGLIGENCE), BREACH OF DUTY CLAIMS, AND ALL OTHER COMMON LAW AND STATUTORY CLAIMS. THIS SECTION HAS BEEN FULLY DISCUSSED BY EACH OF THE PARTIES HERETO AND THESE PROVISIONS WILL NOT BE SUBJECT TO ANY EXCEPTIONS. EACH PARTY HERETO HEREBY FURTHER WARRANTS AND REPRESENTS THAT SUCH PARTY HAS REVIEWED THIS WAIVER WITH ITS LEGAL COUNSEL, AND THAT SUCH PARTY KNOWINGLY AND VOLUNTARILY WAIVES ITS JURY TRIAL RIGHTS FOLLOWING CONSULTATION WITH LEGAL COUNSEL.

<u>EXHIBIT B</u>

COURT ADJUDICATION

The Parties hereby (i) irrevocably and unconditionally submit to the jurisdiction of the relevant courts of the Governing Jurisdiction for the purpose of any dispute, suit, action or other proceeding arising out of or based upon this Agreement or the matters contemplated by this Agreement ("***Disputes***"), (ii) agree not to commence any suit, action or other proceeding arising in connection with or based upon this Agreement or the matters contemplated by this Agreement except before the above-referenced courts, and (iii) waive, and agree not to assert, by way of motion, as a defense, or otherwise, in any such suit, action or proceeding, any claim that it is not subject personally to the jurisdiction of the above-referenced courts, that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that this Agreement or the subject matter hereof or thereof may not be enforced in or by such court.

EXHIBIT C

METALEX TERMS, LICENSE, DISCLAIMERS

This legal template and all associated applications, Smart Contracts (including the Designated Smart Contracts), and software code (including the MetaLeX Protocol) and all the other Deal Management Technology (collectively, the "***MetaLeX Intellectual Property***") are, unless otherwise indicated, the sole intellectual property of MetaLeX and are delivered on an as-is, where-is basis, without representation, warranty, guarantee, assurances or advice of any kind, except as otherwise set forth herein. Except as otherwise provided herein, in the MetaLeX Web App Terms of Service, or at https://github.com/MetaLex-Tech/, no licenses are granted with respect to any MetaLeX Intellectual Property. Subject to your compliance with the foregoing and all other applicable terms and policies, MetaLeX hereby grants you a limited, non-exclusive, non-sublicensable, non-transferable, non-assignable license to use, access, and integrate with this Agreement, the Agreement Template, and the Designated Smart Contracts, solely through the MetaLeX Web App and only in compliance with all applicable terms and policies. Except as expressly licensed herein, in the MetaLeX Web App Terms of Service, or at https://github.com/MetaLex-Tech/, you must not use, access, integrate with, modify, translate, create derivative works of, reverse engineer, or otherwise exploit any MetaleX Intellectual Property. MetaLeX reserves all rights, title, and interest (including the right to enforce any such rights) not expressly granted herein, in the MetaLeX Web App Terms of Service, or at https://github.com/MetaLex-Tech/.

Though the Company and each other securities issuer issuing and managing securities through the MetaLeX Intellectual Property is the sole holder of all administrative, managerial and operational authorities with respect to the relevant Smart Contracts used by the Company or that other particular issuer, the MetaLeX Intellectual Property is currently in beta and MetaLeX retains unilateral upgrade authority over certain Smart Contracts to keep them up to date with changes to the MetaLeX Smart Contract protocol. MetaLeX will not utilize such upgrade authority for the purpose of assisting a particular issuer with its administration of its relationship with its securities holders, but solely for general protocol upgrades or to handle protocol-wide security emergencies during beta testing. The sole method of opting-out of MetaLeX-imposed upgrades to the relevant Smart Contracts with respect to an already issued SAFE Certificate Token will be by the Company or other relevant securities issuer voiding the relevant SAFE Certificate Token and separately issuing its own Blockchain Token representing the Safe or changing to a book-entry system of tracking Safe ownership, which the Company may do at any time in its sole discretion.

MetaLeX makes no representations, warranties, guarantees, or assurances regarding the quality or sufficiency of the MetaLeX Intellectual Property, the Deal Management Technologies, or the MetaLeX Web App or any other application or software, or their compliance with any law in any jurisdiction. The Parties are solely responsible for determining the quality, fitness for purpose, and lawfulness of the foregoing for any particular purpose in any jurisdiction.

This Agreement and the Deal Management Technologies are provided as templates only and do not constitute financial, investment, or other professional advice. MetaLeX does not endorse or recommend any specific investment strategy or the exchange of any particular Blockchain Tokens. The Parties are advised to consult with financial advisors, investment professionals, or other experts to assess the financial implications and risks of engaging in token exchanges or any related activities. MetaLeX disclaims any liability for financial decisions made based on the use or interpretation of this Agreement or any of the Deal Management Technologies.

MetaLeX does not assume responsibility for the contents of, or the consequence of using the MetaLeX Intellectual Property or any Blockchain System or Smart Contracts. MetaLeX does not owe you any attorney-client confidentiality, privilege, fiduciary, or other duties. Before using any of these forms, you should consider consulting with a lawyer licensed in the relevant jurisdiction(s).

The MetaLeX Web Application provides a non-exclusive graphical user interface to assist the Parties with configuring, deploying and using the relevant Smart Contracts and entering into and performing their respective obligations under this Agreement (*see* 'Adoption Procedures' above). Certain details (such as selection of the relevant Agreement Template associated with this Agreement) are pre-configured on the MetaLeX Web Application for convenience of the Parties and represent MetaLeX's opinions of many users' likely preferences, notwithstanding that other configurations of the Smart Contracts are possible. **Please review all fields in the MetaLeX Web Application carefully to ensure you wish to agree to them, including the pre-filled fields.** The terms and conditions of the MetaLeX Web Application are provided separately on the MetaLeX Web Application itself and apply in addition to these Terms, License and Disclaimers.

Each Party acknowledges and agrees:

(a) it had sufficient opportunity to review the source code of each Designated Smart Contracts and any applicable parameters, dependencies, oracles, interfaces, and other software and materials relevant thereto (the "***Source Code***");

(b) it is sufficiently sophisticated in understanding the Source Code and the relevant technology generally or has consulted with a third party with such sufficient technical sophistication; and

(c) it understands the functionality, limitations, and risks of the Source Code for its intended uses and compliance with this Agreement, and that it is entering into this Agreement with full knowledge and acknowledgment thereof.

EXHIBIT D

FORM OF SIMPLE AGREEMENT FOR FUTURE EQUITY

THIS SAFE AND THE SAFE CERTIFICATE TOKEN MAY BE SUBJECT TO ANY OR ALL OF THE RESTRICTIVE LEGENDS SET FORTH AT THE END OF THIS SAFE. PLEASE CHECK THE "LEGENDS" METADATA FIELD OF THE SAFE CERTIFICATE TOKEN FOR THE CURRENTLY APPLICABLE RESTRICTIVE LEGENDS.

SAFE
(Simple Agreement for Future Equity)

THIS CERTIFIES THAT in exchange for the payment by the Investor of the Purchase Amount pursuant to a Cybernetic Safe Purchase Agreement entered into by the Investor and the Company (the "***Purchase Agreement***"), the Company issues to the Investor the right to certain shares of the Company's Capital Stock, subject to the terms described below.

This Safe is a certificated security (as defined in the Uniform Commercial Code (UCC) § 8-102(a)(4)) represented by a non-fungible blockchain token issued by the Company (the "***SAFE Certificate Token***"). The SAFE Certificate Token is intended to function as a security certificate (as defined in UCC §8-102(a)(16)) representing this SAFE.

This Safe has been modified from one of the forms available at http://ycombinator.com/documents solely to accommodate the representation of the SAFE as the SAFE Certificate Token. A redline showing the changes is available at https://ipfs.io/ipfs/bafkreieb25i5bytsqxvvqp5pbzrymkdrmihoxyi36mykk5ack3ilecwway.

The SAFE Certificate Token was issued by the Company's instance of the MetaLeX certificated security token protocol at https://github.com/MetaLex-Tech/cybercorps-contracts/, including an instance of `CyberCertPrinter.sol` (such instance, the "***CyberCertPrinter Smart Contract***"). Specific details of this Safe are stored in a mapping of the `CertificateDetails` struct to the `tokenID` of the SAFE Certificate Token in the memory of the CyberCertPrinter Smart Contract (the "***Mapping***"), including the following details providing the meanings of certain capitalized terms herein:

"***Investor***" means the individual or entity identified by the `investorName` value stored in the Mapping and, if an entity, the `investorType` and `investorJurisdiction` values stored in the Mapping.

"***Company***" means the entity identified by the `cyberCORPName`, `cyberCORPJurisdiction`, and `cyberCORPType` and values stored in the Mapping.

"***Purchase Amount***" means an amount of U.S. dollars equal to the `investmentAmount` value stored in the Mapping.

"***Post-Money Valuation Cap***" means an amount of U.S. dollars equal to the `issuerUSDValuationAtTimeofInvestment` value stored in the Mapping.

"***Governing Jurisdiction***" means the jurisdiction identified by the `governingJurisdiction` value stored in the `legalDetails` value stored in the Mapping.

"***Company Address***" means the mailing and/or electronic address stored in the `contactDetails` value stored in the `companyDetails` value stored in the Mapping.

"***Investor Address***" means the mailing and/or electronic address stored in the `contactDetails` value stored in the `investorDetails` value stored in the Mapping.

See Section 2 for certain additional defined terms.

The Company has certain administrative controls over the SAFE Certificate Token, including controls over the transferability of the SAFE Certificate Token and the power to set the status of the SAFE Certificate Token to "void" for any reason or no reason, in its sole discretion. In the event that the Company sets the status of the SAFE Certificate Token to "void" the Company will either issue the Investor a new SAFE Certificate Token or a paper certificate representing this SAFE, or will provide for representation of this SAFE in book-entry form on the books and records of the Company. In the event of a persistent "contentious hardfork" (as commonly understood in the blockchain industry) of any of the relevant blockchain systems that results in copies of the SAFE Certificate Token on each such blockchain system, the Company shall determine which copy of the SAFE Certificate Token is canonical in its sole and absolute discretion, the restrictive legend set forth below shall apply, and the Company may void, and shall not be required to honor any claims on, or afford any rights to, the copy of the SAFE Certificate Token determined by the Company to be non-canonical. In the event that the blockchain system determined by the Company to be canonical following a contentious hardfork itself subsequently undergoes its own contentious hardfork, this provision shall likewise apply to such contentious hardfork, *mutatis mutandis*.

1. Events

(a) Equity Financing. If there is an Equity Financing before the termination of this Safe, on the initial closing of such Equity Financing, this Safe will automatically convert into the greater of: (1) the number of shares of Standard Preferred Stock equal to the Purchase Amount divided by the lowest price per share of the Standard Preferred Stock; or (2) the number of shares of Safe Preferred Stock equal to the Purchase Amount divided by the Safe Price.

In connection with the automatic conversion of this Safe into shares of Standard Preferred Stock or Safe Preferred Stock, the Investor will execute and deliver to the Company all of the transaction documents related to the Equity Financing; provided, that such documents (i) are the same documents to be entered into with the purchasers of Standard Preferred Stock, with appropriate variations for the Safe Preferred Stock if applicable, and (ii) have customary exceptions to any drag-along applicable to the Investor, including (without limitation) limited representations, warranties, liability and indemnification obligations for the Investor.

(b) Liquidity Event. If there is a Liquidity Event before the termination of this Safe, the Investor will automatically be entitled (subject to the liquidation priority set forth in Section 1(d) below) to receive a portion of Proceeds, due and payable to the Investor immediately prior to, or concurrent with, the consummation of such Liquidity Event, equal to the greater of (i) the Purchase Amount (the "Cash-Out Amount") or (ii) the amount payable on the number of shares of Common Stock equal to the Purchase Amount divided by the Liquidity Price (the "Conversion Amount"). If any of the Company's securityholders are given a choice as to the form and amount of Proceeds to be received in a Liquidity Event, the Investor will be given the same choice, provided that the Investor may not choose to receive a form of consideration that the Investor would be ineligible to receive as a result of the Investor's failure to satisfy any requirement or limitation generally applicable to the Company's securityholders, or under any applicable laws.

Notwithstanding the foregoing, in connection with a Change of Control intended to qualify as a tax-free reorganization, the Company may reduce the cash portion of Proceeds payable to the Investor by the amount determined by its board of directors in good faith for such Change of Control to qualify as a tax-free reorganization for U.S. federal income tax purposes, provided that such reduction (A) does not reduce the total Proceeds payable to such Investor and (B) is applied in the same manner and on a pro rata basis_to all securityholders who have equal priority to the Investor under Section 1(d).

(c) Dissolution Event. If there is a Dissolution Event before the termination of this Safe, the Investor will automatically be entitled (subject to the liquidation priority set forth in Section 1(d) below) to receive a portion of Proceeds equal to the Cash-Out Amount, due and payable to the Investor immediately prior to the consummation of the Dissolution Event.

(d) Liquidation Priority. In a Liquidity Event or Dissolution Event, this Safe is intended to operate like standard non-participating Preferred Stock. The Investor's right to receive its Cash-Out Amount is:

(i) Junior to payment of outstanding indebtedness and creditor claims, including contractual claims for payment and convertible promissory notes (to the extent such convertible promissory notes are not actually or notionally converted into Capital Stock);

(ii) On par with payments for other Safes and/or Preferred Stock, and if the applicable Proceeds are insufficient to permit full payments to the Investor and such other Safes and/or Preferred Stock, the applicable Proceeds will be distributed pro rata to the Investor and such other Safes and/or Preferred Stock in proportion to the full payments that would otherwise be due; and

(iii)Senior to payments for Common Stock.

The Investor's right to receive its Conversion Amount is (A) on par with payments for Common Stock and other Safes and/or Preferred Stock who are also receiving Conversion Amounts or Proceeds on a similar as-converted to Common Stock basis, and (B) junior to payments described in clauses (i) and (ii) above (in the latter case, to the extent such payments are Cash-Out Amounts or similar liquidation preferences).

(e) Termination. This Safe will automatically terminate (without relieving the Company of any obligations arising from a prior breach of or non-compliance with this Safe) immediately following the earliest to occur of: (i) the issuance of Capital Stock to the Investor pursuant to the automatic conversion of this Safe under Section 1(a); or (ii) the payment, or setting aside for payment, of amounts due the Investor pursuant to Section 1(b) or Section 1(c).

2. Definitions

"***Capital Stock***" means the capital stock of the Company, including, without limitation, the "Common Stock" and the "Preferred Stock."

"***Change of Control***" means (i) a transaction or series of related transactions in which any "person" or "group" (within the meaning of Section 13(d) and 14(d) of the Securities Exchange Act of 1934, as amended), becomes the "beneficial owner" (as defined in Rule 13d-3 under the Securities Exchange Act of 1934, as amended), directly or indirectly, of more than 50% of the outstanding voting securities of the Company having the right to vote for the election of members of the Company's board of directors, (ii) any reorganization, merger or consolidation of the Company, other than a transaction or series of related transactions in which the holders of the voting securities of the Company outstanding immediately prior to such transaction or series of related transactions retain, immediately after such transaction or series of related transactions, at least a majority of the total voting power represented by the outstanding voting securities of the Company or such other surviving or resulting entity or (iii) a sale, lease or other disposition of all or substantially all of the assets of the Company.

"Company Capitalization" is calculated as of immediately prior to the Equity Financing and (without double-counting, in each case calculated on an as-converted to Common Stock basis):

Includes all shares of Capital Stock issued and outstanding;

Includes all Converting Securities;

Includes all (i) issued and outstanding Options and (ii) Promised Options; and

Includes the Unissued Option Pool, except that any increase to the Unissued Option Pool in connection with the Equity Financing will only be included to the extent that the number of Promised Options exceeds the Unissued Option Pool prior to such increase.

"***Converting Securities***" includes this Safe and other convertible securities issued by the Company, including but not limited to: (i) other Safes; (ii) convertible promissory notes and other convertible debt instruments; and (iii) convertible securities that have the right to convert into shares of Capital Stock.

"***Direct Listing***" means the Company's initial listing of its Common Stock (other than shares of Common Stock not eligible for resale under Rule 144 under the Securities Act) on a national securities exchange by means of an effective registration statement on Form S-1 filed by the Company with the SEC that registers shares of existing capital stock of the Company for resale, as approved by the Company's board of directors. For the avoidance of doubt, a Direct Listing will not be deemed to be an underwritten offering and will not involve any underwriting services.

"***Dissolution Event***" means (i) a voluntary termination of operations, (ii) a general assignment for the benefit of the Company's creditors or (iii) any other liquidation, dissolution or winding up of the Company (excluding a Liquidity Event), whether voluntary or involuntary.

"***Dividend Amount***" means, with respect to any date on which the Company pays a dividend on its outstanding Common Stock, the amount of such dividend that is paid per share of Common Stock multiplied by (x) the Purchase Amount divided by (y) the Liquidity Price (treating the dividend date as a Liquidity Event solely for purposes of calculating such Liquidity Price).

"***Equity Financing***" means a bona fide transaction or series of transactions with the principal purpose of raising capital, pursuant to which the Company issues and sells Preferred Stock at a fixed valuation, including but not limited to, a pre-money or post-money valuation.

"***Initial Public Offering***" means the closing of the Company's first firm commitment underwritten initial public offering of Common Stock pursuant to a registration statement filed under the Securities Act.

"***Liquidity Capitalization***" is calculated as of immediately prior to the Liquidity Event, and (without double- counting, in each case calculated on an as-converted to Common Stock basis):

Includes all shares of Capital Stock issued and outstanding;

Includes all (i) issued and outstanding Options and (ii) to the extent receiving Proceeds, Promised Options;

Includes all Converting Securities, other than any Safes and other convertible securities (including without limitation shares of Preferred Stock) where the holders of such securities are receiving Cash-Out Amounts or similar liquidation preference payments in lieu of Conversion Amounts or similar "as-converted" payments; and

Excludes the Unissued Option Pool.

"***Liquidity Event***" means a Change of Control, a Direct Listing or an Initial Public Offering.

"***Liquidity Price***" means the price per share equal to the Post-Money Valuation Cap divided by the Liquidity Capitalization.

"***Options***" includes options, restricted stock awards or purchases, RSUs, SARs, warrants or similar securities, vested or unvested.

"***Proceeds***" means cash and other assets (including without limitation stock consideration) that are proceeds from the Liquidity Event or the Dissolution Event, as applicable, and legally available for distribution.

"***Promised Options***" means promised but ungranted Options that are the greater of those (i) promised pursuant to agreements or understandings made prior to the execution of, or in connection with, the term sheet or letter of intent for the Equity Financing or Liquidity Event, as applicable (or the initial closing of the Equity Financing or consummation of the Liquidity Event, if there is no term sheet or letter of intent), (ii) in the case of an Equity Financing, treated as outstanding Options in the calculation of the Standard Preferred Stock's price per share, or (iii) in the case of a Liquidity Event, treated as outstanding Options in the calculation of the distribution of the Proceeds.

"***Safe"*** means an instrument containing a future right to shares of Capital Stock, similar in form and content to this instrument, purchased by investors for the purpose of funding the Company's business operations. References to "this Safe" mean this specific instrument.

"***Safe Preferred Stock***" means the shares of the series of Preferred Stock issued to the Investor in an Equity Financing, having the identical rights, privileges, preferences, seniority, liquidation multiple and restrictions as the shares of Standard Preferred Stock, except that any price-based preferences (such as the per share liquidation amount, initial conversion price and per share dividend amount) will be based on the Safe Price.

"***Safe Price***" means the price per share equal to the Post-Money Valuation Cap divided by the Company Capitalization.

"***Standard Preferred Stock***" means the shares of the series of Preferred Stock issued to the investors investing new money in the Company in connection with the initial closing of the Equity Financing.

"***Unissued Option Pool***" means all shares of Capital Stock that are reserved, available for future grant and not subject to any outstanding Options or Promised Options (but in the case of a Liquidity Event, only to the extent Proceeds are payable on such Promised Options) under any equity incentive or similar

Company plan.

3. Company Representations

(a) The Company is a corporation duly organized, validly existing and in good standing under the laws of its state of incorporation, and has the power and authority to own, lease and operate its properties and carry on its business as now conducted.

(b) The execution, delivery and performance by the Company of this Safe is within the power of the Company and has been duly authorized by all necessary actions on the part of the Company (subject to section 3(d)). This Safe constitutes a legal, valid and binding obligation of the Company, enforceable against the Company in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors' rights generally and general principles of equity. To its knowledge, the Company is not in violation of (i) its current certificate of incorporation or bylaws, (ii) any material statute, rule or regulation applicable to the Company or (iii) any material debt or contract to which the Company is a party or by which it is bound, where, in each case, such violation or default, individually, or together with all such violations or defaults, could reasonably be expected to have a material adverse effect on the Company.

(c) The performance and consummation of the transactions contemplated by this Safe do not and will not: (i) violate any material judgment, statute, rule or regulation applicable to the Company; (ii) result in the acceleration of any material debt or contract to which the Company is a party or by which it is bound; or (iii) result in the creation or imposition of any lien on any property, asset or revenue of the Company or the suspension, forfeiture, or nonrenewal of any material permit, license or authorization applicable to the Company, its business or operations.

(d) No consents or approvals are required in connection with the performance of this Safe, other than: (i) the Company's corporate approvals; (ii) any qualifications or filings under applicable securities laws; and (iii) necessary corporate approvals for the authorization of Capital Stock issuable pursuant to Section 1.

(e) To its knowledge, the Company owns or possesses (or can obtain on commercially reasonable terms) sufficient legal rights to all patents, trademarks, service marks, trade names, copyrights, trade secrets, licenses, information, processes and other intellectual property rights necessary for its business as now conducted and as currently proposed to be conducted, without any conflict with, or infringement of the rights of, others.

4. Investor Representations

(a) The Investor has full legal capacity, power and authority to execute and deliver this Safe and to perform its obligations hereunder. This Safe constitutes a valid and binding obligation of the Investor, enforceable in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors' rights generally and general principles of equity.

(b) The Investor is an accredited investor as such term is defined in Rule 501 of Regulation D under the Securities Act, and acknowledges and agrees that if not an accredited investor at the time of an Equity Financing, the Company may void this Safe and return the Purchase Amount. The Investor has been advised that this Safe and the underlying securities have not been registered under the Securities Act, or any state securities laws and, therefore, cannot be resold unless they are registered under the Securities Act and applicable state securities laws or unless an exemption from such registration requirements is available. The Investor is purchasing this Safe and the securities to be acquired by the Investor hereunder for its own account for investment, not as a nominee or agent, and not with a view to, or for resale in connection with, the distribution thereof, and the Investor has no present intention of selling, granting any participation in, or otherwise distributing the same. The Investor has such knowledge and experience in financial and business matters that the Investor is capable of evaluating the merits and risks of such investment, is able to incur a complete loss of such investment without impairing the Investor's financial condition and is able to bear the economic risk of such investment for an indefinite period of time.

5. Miscellaneous

(a) Any provision of this Safe may be amended, waived or modified by written consent of the Company and either (i) the Investor or (ii) the majority-in-interest of all then-outstanding Safes with the same "Post-Money Valuation Cap" and "Discount Rate" as this Safe (and Safes lacking one or both of such terms will be considered to be the same with respect to such term(s)), provided that with respect to clause (ii): (A) the Purchase Amount may not be amended, waived or modified in this manner, (B) the consent of the Investor and each holder of such Safes must be solicited (even if not obtained), and (C) such amendment, waiver or modification treats all such holders in the same manner. "Majority-in-interest" refers to the holders of the applicable group of Safes whose Safes have a total Purchase Amount greater than 50% of the total Purchase Amount of all of such applicable group of Safes.

(b) Any notice required or permitted by this Safe will be deemed sufficient when delivered personally or by (if the Company Address or Investor Address includes a mailing address) overnight courier or sent electronically to the Company Address or Investor Address, as applicable, or (if the Company Address or Investor Address includes a mailing address) 48 hours after being deposited in the U.S. mail as certified or registered mail with postage prepaid, addressed to the party to be notified at Company Address or Investor Address, as applicable.

(c) The Investor is not entitled, as a holder of this Safe, to vote or be deemed a holder of Capital Stock for any purpose other than tax purposes, nor will anything in this Safe be construed to confer on the Investor, as such, any rights of a Company stockholder or rights to vote for the election of directors or on any matter submitted to Company stockholders, or to give or withhold consent to any corporate action or to receive notice of meetings, until shares have been issued on the terms described in Section 1. However, if the Company pays a dividend on outstanding shares of Common Stock (that is not payable in shares of Common Stock) while this Safe is outstanding, the Company will pay the Dividend Amount to the Investor at the same time.

(d) Neither this Safe nor the rights in this Safe are transferable or assignable, by operation of law or otherwise, by either party without the prior written consent of the other; provided, however, that this Safe and/or its rights may be assigned without the Company's consent by the Investor (i) to the Investor's estate, heirs, executors, administrators, guardians and/or successors in the event of Investor's death or disability, or (ii) to any other entity who directly or indirectly, controls, is controlled by or is under common control with the Investor, including, without limitation, any general partner, managing member, officer or director of the Investor, or any venture capital fund now or hereafter existing which is controlled by one or more general partners or managing members of, or shares the same management company with, the Investor. Transferability of the SAFE Certificate Token requires the prior written consent of the Company, which may be granted by the Company making changes on the applicable blockchain system to enable the SAFE Certificate Token to become transferable on such blockchain system. The Investor shall not make any transfer or assignment of this Safe or any rights under this Safe without transferring the SAFE Certificate Token to the same transferee or assignee. In the case of a transfer or assignment of the Safe by operation of law or that is otherwise involuntary and does not entail transfer of the SAFE Certificate Token, or with respect to which the transferee or assignee does not wish to or cannot accept the SAFE Certificate Token, the Investor and the transferee or assignee shall notify the Company as promptly as far as reasonably practicable in advance of (if possible) or (if advance notice is not possible) as promptly as reasonably practicable after such transfer or assignment, and, for the avoidance of doubt, the Company may void the SAFE Certificate Token, issue a new SAFE Certificate Token, switch this Safe to book-entry-only, or take any other reasonable good faith action to avoid any duplication of this Safe and the SAFE Certificate Token or any rights hereunder or thereunder and to ensure the accuracy of the books and records of the Company and outstanding SAFE Certificate Tokens in light of the transfer or assignment.

(e) In the event any one or more of the provisions of this Safe is for any reason held to be invalid, illegal or unenforceable, in whole or in part or in any respect, or in the event that any one or more of the provisions of this Safe operate or would prospectively operate to invalidate this Safe, then and in any such event, such provision(s) only will be deemed null and void and will not affect any other provision of this Safe and the remaining provisions of this Safe will remain operative and in full force and effect and will not be affected, prejudiced, or disturbed thereby.

(f) All rights and obligations hereunder will be governed by the laws of the Governing Jurisdiction, without regard to the conflicts of law provisions of such jurisdiction.

(g) The parties acknowledge and agree that for United States federal and state income tax purposes this Safe is, and at all times has been, intended to be characterized as stock, and more particularly as common stock for purposes of Sections 304, 305, 306, 354, 368, 1036 and 1202 of the Internal Revenue Code of 1986, as amended. Accordingly, the parties agree to treat this Safe consistent with the foregoing intent for all United States federal and state income tax purposes (including, without limitation, on their respective tax returns or other informational statements).

[*Restrictive Legends follow.*]

RESTRICTIVE LEGENDS

THE SAFE CERTIFICATE TOKEN MAY NOT BE USED TO EFFECT A TRANSFER OR TO OTHERWISE FACILITATE A CHANGE IN BENEFICIAL OWNERSHIP OF THIS SAFE WITHOUT THE PRIOR CONSENT OF THE COMPANY.

THIS SAFE, THE SAFE CERTIFICATE TOKEN, AND ANY SECURITIES ISSUABLE PURSUANT HERETO OR THERETO ARE "RESTRICTED SECURITIES" AS DEFINED IN SEC RULE 144.

THIS SAFE, THE SAFE CERTIFICATE TOKEN AND ANY SECURITIES ISSUABLE PURSUANT HERETO OR THERETO HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE "**SECURITIES ACT**"), OR UNDER THE SECURITIES LAWS OF CERTAIN STATES. THESE SECURITIES MAY NOT BE OFFERED, SOLD OR OTHERWISE TRANSFERRED, PLEDGED OR HYPOTHECATED EXCEPT AS PERMITTED IN THIS SAFE AND UNDER THE SECURITIES ACT AND APPLICABLE STATE SECURITIES LAWS PURSUANT TO AN EFFECTIVE REGISTRATION STATEMENT OR AN EXEMPTION THEREFROM.

IN THE EVENT THAT THE BLOCKCHAIN SYSTEM ON WHICH THE SAFE CERTIFICATE TOKEN WAS ORIGINALLY ISSUED UNDERGOES A PERSISTENT "CONTENTIOUS HARDFORK" (AS COMMONLY UNDERSTOOD IN THE BLOCKCHAIN INDUSTRY, RESULTING IN TWO INDEPENDENT BLOCKCHAIN SYSTEMS THAT ARE BOTH REASONABLY EXPECTED TO HAVE INDEPENDENT PERSISTENT COMMERCIAL VALUE), NO COPY OF THE SAFE CERTIFICATE TOKEN MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED UNTIL THE COMPANY HAS DETERMINED, IN ITS SOLE AND ABSOLUTE DISCRETION, WHICH BLOCKCHAIN SYSTEM (AND WHICH SAFE CERTIFICATE TOKENS) TO TREAT AS CANONICAL, AND THEN ONLY THE SAFE CERTIFICATE TOKEN THUS DETERMINED BY THE COMPANY TO BE CANONICAL MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED (TO THE EXTENT OTHERWISE PERMITTED). IN THE EVENT THAT THE BLOCKCHAIN SYSTEM DETERMINED BY THE COMPANY TO BE CANONICAL FOLLOWING A CONTENTIOUS HARDFORK ITSELF SUBSEQUENTLY UNDERGOES ANOTHER CONTENTIOUS HARDFORK, THIS RESTRICTIVE LEGEND SHALL LIKEWISE APPLY TO SUCH OTHER CONTENTIOUS HARDFORK, MUTATIS MUTANDIS.